

SOLICITATION, OFFER, AND AWARD (Construction, Alteration, or Repair)	1. SOLICITATION NO. 1240LT26Q0048	2. TYPE OF SOLICITATION ☐ SEALED BID (IFB) ☐ INVITATION FOR BID ☐ NEGOTIATED (RFP) REQUEST FOR PROPOSAL	3. DATE ISSUED	PAGE	OF PAGES
				1	15

IMPORTANT -- The "offer" section on the reverse must be fully completed by offeror.

4. CONTRACT NO.		5. REQUISITION/PURCHASE REQUEST NO. 1165776	6. PROJECT NO.
7. ISSUED BY USDA-FS CSA INTERMOUNTAIN 8 324 25TH ST OGDEN UT 84401-2310	CODE 40LT	8. ADDRESS OFFER TO See Box #7.	
9. FOR INFORMATION CALL	a. NAME JANICE KING		b. TELEPHONE NO. (Include area code) (NO COLLECT CALLS)

SOLICITATION

NOTE: In sealed bid solicitations "offer" and "offeror" mean "bid" and "bidder."

10. THE GOVERNMENT REQUIRES PERFORMANCE OF THE WORK DESCRIBED IN THESE DOCUMENTS (Title, identifying no., date)

PROJECT: WHITETAIL ROAD 224 CONSTRUCTION - NEBRASKA NATIONAL FORESTS AND GRASSLANDS, BESSEY RANGER DISTRICT - THOMAS COUNTY, NEBRASKA

NAICS CODE: 237310 - HIGHWAY, STREET, and BRIDGE CONSTRUCTION

SIZE STANDARD: \$45M

Magnitude of Disclosure: \$250,000 - \$500,000.

POC's: JANICE KING, Contract Specialist: janice.king@usda.gov and

Lucas Dahlman, Contracting Officer: lucas.dahlman@usda.gov

There is a Site Visit for this project. Details for this visit are listed in this Solicitation.

DESCRIPTION OF WORK: Work for this project consists of constructing a roadway embankment with turnouts and lead-off ditches; installing specified multi-axial geogrid geosynthetic on approved constructed roadway; furnishing, placing and compacting the aggregate material base course on the geogrid; seeding and installing specified erosion control material; and a final shaping of the roadway as specified. Work will be performed on a designated 1.7 miles of Whitetail Road #224. See the SOW, SOI, Plans and Drawings for more details.

Continued ...

11. The Contractor shall begin performance within <u>10</u> calendar days and complete it within <u>109</u> calendar days after receiving	
☒ award, ☐ notice to proceed. The performance period is ☐ mandatory ☒ negotiable. (See _____.)	
12a. THE CONTRACTOR MUST FURNISH ANY REQUIRED PERFORMANCE AND PAYMENT BONDS? (If "YES", indicate within how many calendar days after award in Item 12b.)	12b. CALENDAR DAYS 10
13. ADDITIONAL SOLICITATION REQUIREMENTS:	
a. Sealed offers in original and <u>1</u> copies to perform the work required are due at the place specified in Item 8 by <u>0900</u> (hour) local time <u>06/03/2026</u> (date). If this is a sealed bid solicitation, offers will be publicly opened at that time. Sealed envelopes containing offers shall be marked to show the offeror's name and address, the solicitation number, and the date and time offers are due.	
b. An offer guarantee ☒ is, ☐ is not required.	
c. All offers are subject to the (1) work requirements, and (2) other provisions and clauses incorporated in the solicitation in full text or by reference.	
d. Offers providing less than <u>90</u> calendar days for Government acceptance after the date offers are due will not be considered and will be rejected.	

OFFER (Must be fully completed by offeror)

14. NAME AND ADDRESS OF OFFEROR (Include ZIP Code)	15. TELEPHONE NO. (Include area code)
	16. REMITTANCE ADDRESS (Include only if different than item 14.)
CODE	FACILITY CODE

17. The offeror agrees to perform the work required at the prices specified below in strict accordance with the terms of this solicitation, if this offer is accepted by the Government in writing within _____ calendar days after the date offers are due. (Insert any number equal to or greater than the minimum requirement stated in item 13d. Failure to insert any number means the offeror accepts the minimum in item 13d.)

AMOUNTS

18. The offeror agrees to furnish any required performance and payment bonds.

19. ACKNOWLEDGEMENT OF AMENDMENTS

(The offeror acknowledges receipt of amendments to the solicitation -- give number and date of each)

AMENDMENT NO.									
DATE.									

20a. NAME AND TITLE OF PERSON AUTHORIZED TO SIGN OFFER (Type or print)	20b. SIGNATURE	20c. OFFER DATE
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AWARD (To be completed by Government)

21. ITEMS ACCEPTED:

Continued...

22. AMOUNT	23. ACCOUNTING AND APPROPRIATION DATA
24. SUBMIT INVOICES TO ADDRESS SHOWN IN (4 copies unless otherwise specified)	ITEM ☐ 10 U.S.C. 3204(a) () ☐ 41 U.S.C. 3304(a) ()
26. ADMINISTERED BY CODE 40LT USDA-FS CSA INTERMOUNTAIN 8 324 25TH ST OGDEN UT 84401-2310	27. PAYMENT WILL BE MADE BY

CONTRACTING OFFICER WILL COMPLETE ITEM 28 OR 29 AS APPLICABLE

☐ 28. NEGOTIATED AGREEMENT (Contractor is required to sign this document and return <u>1</u> copies to issuing office.) Contractor agrees to furnish and deliver all items or perform all work requirements identified on this form and any continuation sheets for the consideration stated in this contract. The rights and obligations of the parties to this contract shall be governed by (a) this contract award, (b) the solicitation, and (c) the clauses, representations, certifications, and specifications incorporated by reference in or attached to this contract.	☐ 29. AWARD (Contractor is not required to sign this document.) Your offer on this solicitation is hereby accepted as to the items listed. This award consummates the contract, which consists of (a) the Government solicitation and your offer, and (b) this contract award. No further contractual document is necessary.
30a. NAME AND TITLE OF CONTRACTOR OR PERSON AUTHORIZED TO SIGN (Type or print)	31a. NAME OF CONTRACTING OFFICER (Type or print)
30b. SIGNATURE	LUCAS J. DAHLMAN
30c. DATE	31b. UNITED STATES OF AMERICA
	BY
	31c. DATE

CONTINUATION SHEET

 REFERENCE NO. OF DOCUMENT BEING CONTINUED
 1240LT26Q0048

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NAME OF OFFEROR OR CONTRACTOR

ITEM NO. (A)	SUPPLIES/SERVICES (B)	QUANTITY (C)	UNIT (D)	UNIT PRICE (E)	AMOUNT (F)
	Questions are due: May 6, 2026, by 9:00 a.m. Central Time and shall be emailed to the POCs listed. Quotes are due: June 3, 2026, by 9:00 a.m. Central Time and shall be emailed to the POCs listed. Delivery: 10/30/2026 Delivery Location Code: 65T1 USDA FOREST SERVICE BESSEY RANGER DISTRICT 40637 RIVER LOOP HALSEY NE 69142 US Period of Performance: 07/13/2026 to 10/30/2026				
0001	Clearing, Grubbing, Construction of 1.7 miles of roadway along with excavation. See the SOW, SOI, Plans and Specifications for more details.	1	LS		
1001	-Deliver and place up to 1655 cubic yards of specified aggregate as flagged by the Government to a twelve (12) foot wide running surface on Road #224, Compaction Method #3. (Option Line Item)	1	LS		

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Nebraska NF & Grasslands in Bessey Ranger District in Thomas County, NE
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Vendor's Name: _____ **Vendor's UEI #:** _____

Description

Work for this project consists of constructing a roadway embankment with turnouts and lead-off ditches; installing specified multi-axial geogrid geosynthetic on approved constructed roadway; furnishing, placing and compacting the aggregate material base course on the geogrid; seeding and installing specified erosion control material; and a final shaping of the roadway as specified. Work will be performed on a designated 1.7 miles of Whitetail Road #224 per Base Item, with Optional Item of additional aggregate placement on Whitetail Road #224. Roadway will be constructed to a fourteen (14) foot wide roadway surface as Shown on the Drawings. Blade the placed aggregate to provide a smooth-running surface with a centerline crown. Reference (FP-24) Standard Specifications for Construction of Roads and Bridges as shown in the Specifications and Drawings. Work to be completed shall be as shown in the Statement of Work, Schedule of Items, Plans and Drawings and Specifications.

This is a combined synopsis/solicitation for commercial items prepared in accordance with the format in FAR Part 12. This announcement constitutes the only solicitation. Quotations are being requested and a separate written solicitation will not be issued.

Note:

"Notice to Offeror(s)/Supplier(s): Funds are not presently available for this effort. No award will be made under this solicitation until funds are available. The Government reserves the right to cancel this solicitation, either before or after the closing date. In the event the Government cancels this solicitation, the Government has no obligation to reimburse an offeror for any costs."

Solicitation number **1240LT26Q0048** is issued as a Request for Quotation (RFQ) for (see the Description of Work above for more details.)

Statement of Requirement

See Attach 1 – Statement of Work, Attach – 2 Schedule of Items, Attach – 3 Plans and Drawings, and Attach – 4 Specifications for details regarding requirements for this project.

Schedule of Items Notes:

- a) Items labeled as optional are not required to be exercised by the government. If exercised, the contractor will be required to perform the optional work in accordance with the terms and conditions of this contract.
- b) The Government reserves the right to exercise all, one or none of the option items.
- c) All pricing for options should include but are not limited to all labor, materials, mobilization, and bonding etc.

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d) One award will be made from this solicitation; contractors must submit pricing for all items.

Project Magnitude: \$250,000 through \$500,000.

PSC CODE: Y1LB –Construction of Highways, Roads, Streets, Bridges, and Railways

(a) The Government is planning a site visit, during which offerors may obtain a better understanding of the work required.

(b) Offerors are encouraged to submit all questions at time of site visit to the Contracting Officer Representative (COR). Offerors will be asked to confirm verbal questions in writing. Subsequent to the site visit, an amendment to the solicitation containing an abstract of the questions and answers will be disseminated via email.

Reason for Pre-Bid Site Visit:

To allow potential offerors the opportunity become familiarized with the general site conditions listed at the site above.

To allow potential offerors the opportunity to ask questions regarding the plans and specifications.

SITE VISIT DATE/TIME/POC/ADDRESS:

April 28, 2026

10:00 a.m. Central Time (11:00 a.m. Mountain Time)

To schedule a site visit, contact Thomas Emerson no later than April 27, 2026, by 12:00 noon Mountain Time.

Site Visit POC/Contact: Thomas Emerson at (308)432-0324 or Thomas.emerson@usda.gov

Meeting Location:

Bessey Ranger District Office

40639 River Loop

Halsey, NE 69142

LAT: 41.901384; LONG: -100.298312

NOTE: Cell phone service is reliable at the Bessey Ranger District Office. The work site is approximately 11.5 miles south of the office. Cell phone service can be unreliable at the project

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location. For the site visit, meet in the parking lot of the District Office at 10:00 a.m. Central Time. (11:00 a.m. Mountain Time). The COR and contractors attending the site visit will proceed to the project location at 10:15 a.m. CST (11:15 a.m. Mountain Time). Please arrive on time.

Contracting Officer: Lucas Dahlman
Email: Lucas.Dahlman@usda.gov

Contract Specialist: Janice King
Email: Janice.king@usda.gov

Prospective offerors will have the opportunity to ask the Contracting Officer Representative (COR) questions at the project site listed above, then the meeting will proceed to the project area for site-specific questions. **Potential offerors are expected to provide their own transportation, The Government assumes no responsibility for any expense incurred by an offeror prior to contract award.**

Bid Bond/Offer Guarantee (FAR 52.228-1): A bid bond/offer guarantee is required. The required amount of the bid guarantee is **20%** of the quote/offer, but not to exceed **\$3 million**.

Performance & Payment Bonds (FAR 52.228-15): Offerors are reminded that if the amount of the award **exceeds \$35,000** submission of a **100% Payment Bond** is required. If the amount of the award **exceeds \$150,000.00** submission of **100% Payment and Performance Bonds** are required. Bonds are due no later than 10 calendar days after award and must be submitted to Contract Specialist, Janice King via email at Janice.King@usda.gov and Contracting Officer, Lucas Dahlman at Lucas.Dahlman@usda.gov before work begins. The **Performance Bond** must be submitted using the mandatory **Standard Form (SF) 25**, and the **Payment Bond** must be submitted using the mandatory **Standard Form (SF) 25A**. Please note that no substitute forms will be accepted.

Estimated Period of Performance: July 13, 2026, - October 30, 2026

1. Solicitation Attachments

The following documents are included as attachments to this solicitation and can be accessed via the “Attachments/Links” section of the posting.

- Attachment 1 – Statement of Work
- Attachment 2 – Schedule of Items
- Attachment 3 – Plans and Drawings
- Attachment 4 – Specifications
- Attachment 5 – Nebraska NF Heritage Program Report R2022020701042
- Attachment 6 – Wage Determination dated 01.02.2026____

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Federal Acquisition Regulation (FAR) and United States Department of Agriculture Acquisition Regulation (AGAR) Clauses and Provisions

The clauses and provisions contained herein are applicable to any order awarded as a result of this solicitation. The terms and conditions set forth herein supersede all other terms and conditions. Acceptance of the order in accordance with (IAW) FAR 12.201-1(b)(2) constitutes acceptance of all terms and conditions contained herein.

As part of the Revolutionary FAR Overhaul (RFO), system updates may lag policy updates. The System for Award Management (SAM) may continue to require entities to complete representations based on provisions that are not included in this solicitation. Contracting officers will rely on

representations from offers based on provisions in the solicitation. Entities are not required to, nor are they able to, update their entity registration to remove these representations in SAM.

52.252-2 Clauses Incorporated by Reference Feb 1998

This solicitation incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also the full text of the clause may be accessed electronically at Internet address <https://www.acquisition.gov/far-overhaul/far-part-deviation-guide/far-overhaul-part-52>

52.212-4	Terms and Conditions—Commercial Products and Commercial Services (Nov 2025)
52.203-17	Contractor Employee Whistleblower Rights (Nov 2023)
52.203-19	Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (Jan 2017)
52.222-50	Combating Trafficking in Persons (Nov 2025)
52.226-8	Encouraging Contractor Policies to Ban Text Messaging While Driving (May 2024)
52.232-39	Unenforceability of Unauthorized Obligations (Jun 2013)
52.232-40	Providing Accelerated Payments to Small Business Subcontractors (Mar 2023)
52.233-3	Protest After Award (Sep 2025)
52.233-4	Applicable Law for Breach of Contract Claim (Sep 2025)
52.240-91	Security Prohibitions and Exclusions (Nov 2025)
52.244-6	Subcontracts for Commercial Products and Commercial Services (Nov 2025)
52.246-21	Warranty of Construction (March 1994)

The following clauses are applicable if checked:

- ☒ 52.203-6 Restrictions on Subcontractor Sales to the Government (Jun 2020) with Alternate I (Nov 2021) of 52.203-6
- ☒ 52.204-13 System for Award Management—Maintenance (Nov 2025)
- ☒ 52.209-6 Protecting the Government’s Interest When Subcontracting with Contractors Debarred, Suspended, or Proposed for Debarment (Sep 2025)
- ☒ 52.209-10 Prohibition on Contracting with Inverted Domestic Corporations (Sep 2025)

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- ☒ 52.219-6 Notice of Total Small Business Aside (Nov 2025)
 - ☐ Alternate I (Mar 2020).
- ☒ 52.219-8 Utilization of Small Business Concerns (Nov 2025)
- ☒ 52.219-14 Limitations on Subcontracting (Nov 2025)
- ☒ 52.219-33 Nonmanufacturer Rule (Nov 2025)
- ☒ 52.222-3 Convict Labor (June 2003)
- ☒ 52.222-19 Child Labor—Cooperation with Authorities and Remedies (Nov 2025)
- ☒ 52.222-35 Equal Opportunity for Veterans (Nov 2025)
 - ☐ Alternate I (Jul 2014) of 52.222-35
- ☒ 52.222-36 Equal Opportunity for Workers with Disabilities (Nov 2025)
 - ☐ Alternate I (Jul 2014) of 52.222-36
- ☒ 52.222-37 Employment Reports on Veterans (Nov 2025)
- ☒ 52.222-40 Notification of Employee Rights Under the National Labor Relations Act (Dec 2010)
- ☒ 52.222-54 Employment Eligibility Verification (Nov 2025)
- ☒ 52.222-62 Paid Sick Leave Under Executive Order 13706 (Jan 2022)
- ☒ 52.223-9 Estimate of Percentage of Recovered Material Content for EPA-Designated Items (May 2008)
- ☒ 52.223-23 Sustainable Products and Services
- ☒ 52.225-1 Buy American-Supplies (Nov 2025)
 - ☐ Alternate I (Oct 2022) of 52.225-1
- ☒ 52.225-5 Trade Agreements (Nov 2023)
- ☒ 52.232-33 Payment by Electronic Funds Transfer— System for Award Management (Oct 2018)
- ☒ 52.237-2 Protection of Government Buildings, Equipment, and Vegetation (Apr 1984)
- ☒ 52.240-93 Basic Safeguarding of Covered Contractor Information Systems (No 2025)

Other Applicable Clauses

- 52.217-7 Option for Increased Quantity - Separately Priced Line Item (Mar 1989)
- 52.217-9 Option to Extend the Term of the Contract (Mar 2000)
 - (a) 30 Calendar days prior to contract expiration and 60 days
 - (c) five years.
- 52.245-1 Government Property (Sep 2021)
- 52.245-9 Use and Charges

AGAR Clauses

- 452.203-71 Anti-Discrimination and Diversity, Equity, and Inclusion (DEI) Compliance (Dec 2025)

(a) By entering into this contract, the Contractor certifies that:

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- (1) It is compliant with all applicable Federal anti-discrimination laws and the Equal Protection principles of the U.S. Constitution, and it will remain compliant for the duration of the contract.
 - (2) Neither it nor any subcontractor or teaming partner operates or funds any program, policy, or initiative that promotes DEI in a manner that violates any applicable Federal anti-discrimination laws, including but not limited to Title VI and VII of the Civil Rights Act of 1964, or the Equal Protection principles of the U.S. Constitution, and the Contractor and any subcontractor or teaming partner will not do so for the duration of the contract.
- (b) If the Contractor participates in, facilitates, or funds programs that implicate Title VI of the Civil Rights Act of 1964 or Title IX of the Education Amendments of 1972, as amended, including but not limited to grants to or for schools, colleges, universities, 4-H programs, non-governmental organization (NGO) programs, sports programs, and education-related grants to prisons or other detention facilities, the Contractor certifies that it will remain compliant with those laws, including the requirements set forth in Executive Order 14168, Defending Women from Gender Ideology Extremism and Restoring Biological Truth to the Federal Government, and Executive Order 14173, Ending Illegal Discrimination and Restoring Merit-Based Opportunity.
- (c) The Contractor affirms that the above requirements are conditions of payment that go to the essence of the contract and are therefore material terms of the contract. Payments under the contract are predicated on compliance with the above requirements, and therefore the Contractor is not eligible for funding under the contract or to retain any funding under the contract absent compliance with the above requirements.
- (d) This certification reflects a change in the Government's position regarding the materiality of the foregoing requirements and therefore any prior payment of similar claims does not reflect the materiality of the foregoing requirements to this contract.
- (e) Submission of a knowing false statement relating to Contractor's compliance with the above requirements and/or eligibility for the contract may subject the Contractor to liability under the False Claims Act, 31 U.S.C. § 3729, and/or criminal liability, including under 18 U.S.C. §§ 287 and 1001.
- (f) The Contractor must include the provisions of this clause in all subcontract solicitations.
- (g) Failure on the part of the Contractor or its subcontractors to comply with the terms of this clause may be grounds for the Contracting Officer to terminate this contract for default.
- (End of Clause)

Award Type

It is anticipated that a firm-fixed Price Contract will be awarded as a result of this synopsis/solicitation.

The Government intends to make one award from this solicitation. Therefore, to be considered

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responsive, contractors must submit pricing for all items.

Evaluation and Basis for Award

The provision at FAR 52.212-2, Evaluation—Commercial Products and Commercial Services is not applicable to this solicitation. In lieu of this provision, quotes will be evaluated in accordance with FAR 12.203 based on the criteria listed below. Award will be made to the offeror representing the best value to the Government.

Evaluation Factors

Factor 1: Technical Approach and Understanding of the Project:

The technical approach will evaluate the ability of the offeror to provide a sound, compliant, approach that meets all requirements and shows a thorough understanding of the work. It is the contractor's responsibility to ensure that their quotation clearly demonstrates their capability to meet the requirement. All offerors must provide the following, minimum, information and documentation with their quotations to be considered responsive and have their offers evaluated:

- A detailed 2- 4 page explanation of the offeror's approach to complete the project in the Statement of Work, to include the delivery requirements. A simple statement of capabilities will *not* suffice. The offeror must address how it will accomplish the requirements of the SOW addressing key tasks and demonstrating a thorough understanding of the project.
- Offerors shall include a Construction Schedule illustrating the project's schedule for the work to be completed within the estimated Period of Performance for this contract. In the event that a Gantt Chart, or similar chart is be used, the illustration shall incorporate the work to be done in this project, expressed in a timeline that is within the Period of Performance.
- Offerors shall include a Bid Guarantee in its submission of quote.

The Government will evaluate the content of the offeror's quote for **Factor 1: Technical Approach and Understanding of the Project** by assessing the reasonableness of the contractor's approach to performing the work and the contractor's understanding of the project. A Confidence Assessment Rating, listed below, will be assigned based on the contractor's ability to exhibit reasonableness in its approach to the work and an understanding of the work to be performed:

Confidence Assessment Ratings: Factor 1 – Technical Approach

- **High Confidence** – Government has a high expectation of successful performance.
- **Some Confidence** – Government has a reasonable expectation of success.
- **Low Confidence** – Government has concerns about successful performance.
- **Neutral Confidence** – No relevant information was submitted by the contractor.

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Factor 2: Past Performance:

The offeror shall briefly describe, in no more than 3 pages (8 ½ x 11 inches), previous contract experience (either as a prime or subcontractor) completed within the last 5 years that is similar in scope and complexity to work listed in the Statement of Work (SOW), especially for federal, state, local government(s) or commercial customers. Highlight actual work performed by your company for each project and how it relates to the project in question; quality of work; timeliness of performance; contract management including paperwork processing and quality control effectiveness; customer satisfaction; cost control; oversight of project resources including subcontractors and suppliers; and compliance with contract requirements, regulatory, labor, and safety standards as it relates to each project.

For each project, the contractor shall provide a Reference List with the following:

- CPARS Reviews (if federal), Customer Reviews, or any other relevant recommendations,
- Contract Number (if federal),
- Location of the project,
- Description of work performed,
- Size of the project (include the dollar value of the project),
- Key personnel and major subcontractors utilized,
- Customer contacts (must provide telephone numbers and email addresses of customers),
- Quality of service/customer satisfaction/business relationships with customers,
- If problems were encountered, describe them and any corrective actions taken to prevent a recurrence.

b)

Offerors without relevant past performance will not be rated favorably or unfavorably but will receive a Neutral Confidence rating. The Government may utilize any references provided by the Contractor, along with information available from past contracts/orders with the USDA and any information found using sources such as Federal Government sources or the Contractor Performance Assessment Reporting System (CPARS) to determine if the Contractor has acceptable or neutral Past Performance. Past Performance will be evaluated using the following rating system:

- **Acceptable:** The contractor shows a demonstrated ability to meet contract requirements in prior or current contracts, including quality of work, timeliness, cost control, business relations, and adherence to contract terms.
- **Neutral:** Offeror does not have a past performance record.

c)

- **Unacceptable:** The contractor has a documented history of failing to meet contract requirements, including poor quality, missed deadlines, cost overruns, lack of responsiveness, or unethical behavior.

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Factor 3 - Price:

The offeror shall provide pricing as requested in the attached spreadsheet titled Attachment 2 – Schedule of Items. Any quantity price discounts and discounts for prompt payment should be included in this section.

Price Evaluation: Total price evaluation will be for the base period, all optional items, and periods. Failure to propose pricing for the base items and optional items on individual line items may result in a quotation being excluded from further consideration. The offeror's quotation will be evaluated in accordance with FAR 12.204, to determine if it is fair and reasonable.

Evaluation Method:

All quotations will be evaluated to identify the offeror presenting the most technically advantageous solution based on the stated evaluation criteria. Once the highest technically rated offeror is identified, price will be evaluated to determine whether it is fair and reasonable. Award will not necessarily be made to the lowest-priced offeror. Tradeoffs will not be conducted.

52.252-1 Solicitation Provisions Incorporated by Reference Feb 1998

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es): <https://www.acquisition.gov/far-overhaul/far-part-deviation-guide/far-overhaul-part-52>

**52.212-1 Instructions to Offerors - Commercial Products and Commercial Services
(Nov 2025)**

Period for acceptance of offers.

The Offeror agrees to hold the prices in its offer firm for **90 calendar days** from the date specified for receipt of offers.

Questions

Questions shall be submitted via email to: Janice King at Janice.king@usda.gov and to Lucas Dahlman at lucas.dahlman@usda.gov . **Questions are due no later than May 6, 2026, at 9:00 a.m. Central Time.** This will ensure enough time to respond before the solicitation period ends. **Please include the project's name and number as the subject line of the email.**

Quotes:

Quotes shall be submitted via email to Janice King at Janice.king@usda.gov and to Lucas Dahlman at lucas.dahlman@usda.gov . **Quotes are due by June 3, 2026, at 9:00 a.m. Central Time.**

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Please include the project's name and number as the subject line of the email.

- 52.203-18 Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements-Representation (Jan 2017)
- 52.209-2 Prohibition on Contracting with Inverted Domestic Corporations - Representation (Sep 2025)
- 52.209-11 Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law (Sep 2025)
- 52.240-90 Security Prohibitions and Exclusions Representations and Certifications (Nov 2025)

The following provisions are applicable if checked:

- ☒ 52.203-11 Certification and Disclosure Regarding Payments to Influence Certain Federal Transactions (Sep 2024)
- ☒ 52.204-7 System for Award Management—Registration (Nov 2025)
 - ☐ Alternate I (Nov 2025) to 52.204-7
- ☒ 52.222-18 Certification Regarding Knowledge of Child Labor for Listed End Products (Feb 2021)
- ☒ 52.225-2 Buy American Certificate (Oct 2022)

Other Applicable FAR Provisions

- 52.233-2 Service of Protest (Sep 2025)
- 52.237-1 Site Visits (Apr 1984)

AGAR Provisions

- 452.203-70 Anti-Discrimination and Diversity, Equity, and Inclusion (DEI) Certification (Dec 2025)

(a) By submission of its offer, the offeror certifies that:

- (3) It is compliant with all applicable Federal anti-discrimination laws and the Equal Protection principles of the U.S. Constitution.
- (4) Neither it nor any proposed subcontractor or teaming partner operates or funds any program, policy, or initiative that promotes DEI in a manner that violates any applicable Federal anti-discrimination laws, including but not limited to Title VI and VII of the Civil Rights Act of 1964, or the Equal Protection principles of the U.S. Constitution.

(b) If the offeror participates in, facilitates, or funds programs that implicate Title VI of the Civil Rights Act of 1964 or Title IX of the Education Amendments of 1972, as amended, including but not limited to grants to or for schools, colleges, universities, 4-H programs, non-governmental

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organization (NGO) programs, sports programs, and education-related grants to prisons or other detention facilities, by submission of its offer, the offeror certifies that it is compliant with those laws, including the requirements set forth in Executive Order 14168, Defending Women from Gender Ideology Extremism and Restoring Biological Truth to the Federal Government, and Executive Order 14173, Ending Illegal Discrimination and Restoring Merit-Based Opportunity.

(c) The offeror affirms that the above requirements are conditions of payment that go to the essence of the contract and are therefore material terms of the contract. Payments under the contract are predicated on compliance with the above requirements, and therefore the offeror will not be eligible for funding under the contract or to retain any funding under the contract absent compliance with the above requirements.

(d) This certification reflects a change in the Government's position regarding the materiality of the foregoing requirements and therefore any prior payment of similar claims does not reflect the materiality of the foregoing requirements to this contract.

(e) Submission of a knowing false statement relating to offeror's compliance with the above requirements and/or eligibility for the contract may subject the offeror to liability under the False Claims Act, 31 U.S.C. § 3729, and/or criminal liability, including under 18 U.S.C. §§ 287 and 1001.

(f) Failure on the part of the offeror or its subcontractors to comply with the terms of this clause may be grounds for the Contracting Officer to terminate the contract for default.
(End of Provision)

NOTICE FOR FILING AGENCY PROTESTS
United States Department of Agriculture (USDA) Ombudsman Program

The USDA is committed to issuing solicitations and awarding contracts in a fair and prompt manner. The Ombudsman Program for Agency Protests (OPAP) was established to address protest issues within the agency, providing an alternative to costly and time-consuming litigation. Operating independently, OPAP offers relief comparable to that granted by the Government Accountability Office (GAO). Interested parties are encouraged to resolve concerns through USDA's internal Alternative Dispute Resolution (ADR) process before pursuing external forums such as the GAO. Concerns may be addressed informally or through a formal agency protest filed with either the Contracting Officer or the Ombudsman.

Informal Forum with the Ombudsman

1. **Initial Point of Contact:** Interested parties who believe a specific USDA procurement is unfair or otherwise defective should first direct their concerns to the applicable Contracting Officer.
2. **Escalation:** If the Contracting Officer is unable to address their concerns, interested parties are encouraged to contact the USDA Ombudsman for Agency Protests. Under this informal process, the agency is not required to suspend contract award performance. Utilization of the informal forum does not suspend any time requirement for filing a formal protest with the

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agency or other forums.

3. **Required Information:** To ensure a timely response, interested parties should provide the following information to the Ombudsman: solicitation/contract number, contracting office, Contracting Officer, and solicitation closing date (if applicable).

Formal Agency Protest with the Ombudsman

1. **Effort to Resolve:** Prior to submitting a formal agency protest, protesters must first use their best efforts to resolve their concerns with the Contracting Officer through open and frank discussions.
2. **Independent Review:** If the protester's concerns remain unresolved, an Independent Review is available by the Ombudsman. The protester may file a formal agency protest with either the Contracting Officer or, alternatively, with the Ombudsman under the OPAP program. Contract awards or performance will be suspended during the protest period unless justified in writing for urgent and compelling reasons or determined in writing to be in the best interest of the Government.
3. **Resolution Timeline:** The agency's goal is to resolve protests within 35 calendar days from the date of filing.
4. **Required Information:** Protests shall include the information set forth in FAR 33.104(a)(3). Failure to submit the required information may result in a delay or dismissal of the protest.
5. **Timeliness:** Protests must be filed within the timeframes specified in FAR 33.104.
6. **Submission:** Formal protests under the OPAP program should be submitted electronically to SPE.inquiry@usda.gov and the Contracting Officer.

Election of Forum. By initiating a protest with the USDA, the protester agrees not to pursue the same matter with the Government Accountability Office (GAO) or any other external forum while the agency protest is pending. If a protest is filed externally, the agency protest will be dismissed.